

Special Notice: FD-2025-046

***The National Oceanic and Atmospheric Administration's (NOAA), NOAA Fisheries OMB Acquisition Division, intends to negotiate, on a sole source basis, under authority of FAR 13.106-1(b)(1), with The Regents of University of California located in Oakland, CA for the use of the Risk & Safety Solutions application/platform for chemical inventory management to be performed at NOAA Fisheries Office of Management and Budget (MB-6).

***The sole source determination is based on NOAA's requirement that The Regents of University of California is the only vendor that manufactures and distributes the Risk & Safety Solutions application/platform used for chemical inventory management systems.

Risk Safety Solutions (RSS) Chemicals is a chemical inventory management tool that's presently used, and we are nearing the last option period. This tool is designed for the National Marine Fisheries Service (NMFS) to efficiently manage its chemical inventories. Specifically, it allows users to quickly track, add, transfer, or remove chemicals from their inventory, ensuring safety compliance, emergency response readiness, and efficient resource management in all laboratories. This tool ensures NOAA NMFS complies with federal Occupational Safety and Health (OSHA) regulations 29 CFR 1910.1200 and Hazard Communication Standard and 29 CFR 1910.1450, Laboratory Standard. The current RSS application is proprietary to the Vendor and meets the compatibility and regulatory requirements of existing systems and equipment.

The scope of this requirement includes continued chemical inventory management annual subscription services to the RSS platform. The primary objectives are:

- Inventory Management: Real-time tracking and reconciliation of chemical inventory and technical support and maintenance.
- Regulatory Compliance: Automated compliance reporting and adherence to local, state, and federal regulations.
- Safety Enhancements: Immediate access to safety data sheets (SDS) and hazardous chemical information.
- Mobile Accessibility: Availability of platform features on mobile devices for on-site access.
- Integration Capabilities: Seamless integration with existing enterprise systems.

The following Tasks are required under any resultant purchase order.

Training and Documentation:

- Comprehensive and on-going user training sessions for key personnel.
- User manuals and quick reference guides for platform navigation and troubleshooting.
- Online academy access
- Training on new features

Regulatory Compliance Features:

- Automated generation of required regulatory reports.
- Real-time alerts for compliance-related updates or issues.

Technical Support and Maintenance:

- Customer support for issue resolution.
- Regular software updates and security patches.
- Quarterly performance reviews and feedback sessions.

The base Period of Performance is expected to begin 5/3/2025 and end 5/2/2026, with two (2) twelve-month option periods.

***This notice of intent is not a request for competitive proposals and no solicitation package is available. However, firms that believe they can fully meet the government's requirements may submit substantiating documentation in writing to the identified point of contact within 15 days after publication of this synopsis. Such documentation will be evaluated solely for the purpose of determining whether or not to conduct this procurement on a competitive basis. A determination by the government not to conduct a competitive procurement, based upon responses to this notice, is solely within the discretion of the government. Oral communications are not acceptable in response to this notice.

**SINGLE SOURCE DETERMINATION USING
SIMPLIFIED ACQUISITION PROCEDURES (SAP)
FOR AN ACTION NOT EXCEEDING THE SIMPLIFIED ACQUISITION THRESHOLD
(AUTHORITY: FAR 13.106-1(b)(1))**

PR: 143018-25-0010

- 1. Agency and contracting activity.** Department of Commerce, Fisheries OMB Field Delegates and *Management and Budget -6 (MB-6)*
- 2. Description of supplies or services required to meet agency needs (including the estimated value).** The National Marine Fisheries Service (NMFS) requires all science centers and regional office laboratories or offices that store chemicals to comply with the Occupational Safety and Health Administration's (OSHA) regulations, such as 29 CFR 1910.1200 (Hazard Communication Standard) and 29 CFR 1910.1450 (Laboratory Standard). NMFS requires a system that allows NMFS employees to quickly track, add, transfer, or remove chemicals from an inventory. The current platform/application, Risk Safety Solutions (RSS), provides the necessary tools to ensure NMFS compliance with federal safety & health regulations, emergency response readiness, and efficient resource management in all laboratories. The scope of this project includes continued chemical inventory management annual subscription services to the RSS platform. The primary objectives and requirements are:
 - Inventory Management: Real-time tracking and reconciliation of chemical inventory and technical support and maintenance.
 - Regulatory Compliance: Automated compliance reporting and adherence to local, state, and federal regulations.
 - Safety Enhancements: Immediate access to safety data sheets (SDS) and hazardous chemical information.
 - Mobile Accessibility: Availability of platform features on mobile devices for on-site access.
 - Integration Capabilities: Seamless integration with existing enterprise systems.

The total estimated cost and value to NMFS is [REDACTED] for the base year, including 2-year Option Periods. The planned contract type is a Firm-Fixed Price Contract.

- 3. Identification of the single source.** The Regents of The University of California; 1111 Franklin St. FL 8, Oakland, CA 94607-5201; [REDACTED]
- 4. Supporting rationale.** Only one source is reasonably available as detailed below:

Other - Only one source is capable – The Risk Safety Solutions (RSS) is the application for Chemical Inventory Management used by NOAA Fisheries and is essential to renew the annual subscription to the services provided. NOAA Fisheries has used RSS as the Chemical Inventory Management platform since 2021, resulting in NOAA Fisheries' compliance with OSHA

regulations and providing the necessary tools to accomplish the desired outcome and primary goals. Using a different Chemical Inventory Management application would result in a new system management implementation requiring additional training for the NOAA Fisheries Staff to use the new platform. This would then require added helpdesk support and management of the new application from the new service provider. Additionally, a new platform would require an extensive assessment review of its compliance with OSHA. The current RSS application is proprietary to the Vendor and meets the compatibility and regulatory requirements of existing systems and equipment.

- 5. Market Research.** Based on the market research results, no other vendor would be able to provide the Risk & Safety Solutions (RSS), other than The Regents of University of California, to NOAA Fisheries as the sole source of the application. The Regents of University of California is the known entity that has the capabilities to continue to provide the services for NOAA Fisheries OMB's use of the RSS chemical inventory management tool that is presently used to manage chemical inventories efficiently. The Regents of University of California confirmed in an email that they are the sole source for the RSS application/platform and do not have authorized resellers. There were two other vendors found during market research; however, the vendors do not have the compatibility and function of system applications required by NOAA Fisheries.

6. Technical/Requirements Representative Certification

I certify that this requirement constitutes the Government's minimum needs and the supporting data provided herein is accurate and complete to the best of my knowledge and belief.

[REDACTED]

[REDACTED]

[REDACTED]